

# Board of County Commissioners

## Minutes of the Proceedings - Final

Historic Courthouse  
310 W 19th Street  
Cheyenne, WY 82001



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**Tuesday, May 7, 2024**

**3:30 PM**

**Commissioners Board Room**

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### Roll Call/Call to Order

**Present:** Chairman Brian Lovett, Vice Chairman Gunnar Malm, Commissioner Linda Heath, Commissioner K. N. Buck Holmes, Commissioner Troy Thompson

### Minutes

1. Consideration of the Minutes of Proceedings for April 16, 2024.

[24 - 218](#)

**Attachments:** [Draft Minutes April 16, 2024](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Thompson, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

### Consent Agenda

#### Approval of the Consent Agenda

A motion was made by Commissioner Heath, seconded by Commissioner Thompson, to approve the Consent Agenda. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

2. Consideration of a supplemental terms & conditions to GSA#07F-0492Y total solutions for law enforcement, security, facilities management, fire, rescue, clothing, marine craft and emergency disaster response agreement between Laramie County, WY, and Donatini dba Johnson Hicks in an amount not to exceed \$24,418.85 to purchase a color thermal vision camera.

[24 - 204](#)

**Attachments:** [Agreement, Johnson Hicks](#)

This agenda item was approved.

3. Consideration of amendment three to the grant agreement between Laramie County, WY, and WY Dept of Health, Public Health Division, to extend the co-response grant term to May 31, 2026. [24 - 205](#)

**Attachments:** [Amendment Three, DOH - Public Health Division](#)

This agenda item was approved.

4. Consideration of an award contract between Laramie County, WY, and the WY Office of the Attorney General, Division of Criminal Investigation, for a FY19 Project Safe Neighborhoods award in the amount of \$14,500 to run through Sept 15, 2024. The funds provided are for two staff members to attend the Crime Prevention Through Environmental Design Training and to purchase a macro camera lens. [24 - 216](#)

**Attachments:** [Grant Award, Office of AG, Project Safe Neighborhoods Grant](#)

This agenda item was approved.

5. Consideration of the ratification of a resolution authorizing the submission of a grant application to the Cheyenne Regional Medical Center for a Community Benefit grant in the amount of \$1,000 to assist the Laramie County Law Enforcement Assisted Diversion Program to minimize food insecurity for participants. [24 - 207](#)

**Attachments:** [Community Benefit Application, CRMC](#)

This agenda item was approved.

6. Consideration of the ratification of a resolution authorizing submission of a grant application to the US Dept of Energy for an Infrastructure Investment Jobs Act of 2021 Energy Efficiency and Conservation Block Grant, Program Formula Grant, in the amount of \$76,200, with a match of \$490 to retrofit 105 wall sconces with LED lights in the courthouse. [24 - 217](#)

**Attachments:** [Grant Application, US Dept of Energy, EECBG](#)

This agenda item was approved.

7. Consideration of the ratification of a resolution authorizing submission of a grant application to the WY Office of Homeland Security, Emergency Management Planning Grant Program, for Emergency Management in the amount of \$127,072 with a 50% match. [24 - 228](#)

**Attachments:** [FY25 EMPG Grant Application, EMA](#)

This agenda item was approved.

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8. Consideration of the second amendment to a memorandum of understanding (230207-2) between Laramie County, WY, Cheyenne Regional Medical Center, city of Cheyenne, and Dr Clair Uding (White) to extend the term from May 31, 2024 to May 31, 2026. [24 - 208](#)

**Attachments:** [Second Amendment, CRMC, City of Cheyenne and Dr Clair Uding \(White\), Co-response Mental Health](#)

This agenda item was approved.

9. Consideration of an addendum to the contract between Laramie County, WY, and Freckle Farm Petting Zoo in the amount of \$8,400 to provide a petting zoo at the Laramie County Fair. [24 - 213](#)

**Attachments:** [Addendum, Freckle Farm Petting Zoo](#)

This agenda item was approved.

10. Consideration of an addendum to the contract between Laramie County, WY, and Freckle Farm Pony Rides in the amount of \$3,600 to provide pony rides at the Laramie County Fair. [24 - 214](#)

**Attachments:** [Addendum, Freckle Farm Pony Rides](#)

This agenda item was approved.

11. Consideration of an agreement between Laramie County, WY, and Artsy Events, LLC, dba Wowzers, in the amount of \$6,180 to provide airbrush art services at the Laramie County Fair. [24 - 227](#)

**Attachments:** [Agreement, Artsy Events, LLC](#)

This agenda item was approved.

12. Consideration of an addendum between Laramie County, WY, and Advanced Communications Technology, Inc, to modify the service order dated Dec 29, 2023. The master service agreement and addendum (181002-08), signed on Oct 17, 2017, remains in effect. [24 - 206](#)

**Attachments:** [Addendum, Advanced Communications Technology, Inc](#)

This agenda item was approved.

13. Consideration of the deletion from Public Works fixed asset inventory of a 1999 Kenworth T800 semi and 2000 Freightliner semi to be sold. [24 - 226](#)

**Attachments:** [Asset Deletion, Public Works, 1999 Kenworth](#)  
[Asset Deletion, Public Works, 2000 Freightliner](#)

This agenda item was approved.

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14. Consideration of the deletion from the Sheriff's fixed asset inventory of a 2013 and 2015 Ford Taurus to be sold at public auction. [24 - 237](#)

**Attachments:** [Asset Deletion, Sheriff, 2013 Ford](#)  
[Asset Deletion, Sheriff, 2015 Ford](#)

This agenda item was approved.

15. Consideration of an agreement between Laramie County, WY, and KP, LLC, to provide special district ballot printing services as fully described in exhibit A. [24 - 200](#)

**Attachments:** [Agreement, KP, LLC](#)  
Confidential, Agreement, KP, LLC, Exhibit A

This agenda item was approved.

16. Consideration of a catering permit submitted by Viper, Inc, dba The Den Gentleman's Club, located at 8 US Hwy 85 for an event on June 22, 2024. [24 - 215](#)

**Attachments:** [24-Hour Permit, The Den Gentleman's Club, June 22, 2024](#)

This agenda item was approved.

17. Consideration of the following fees collected by various county entities for March 2024: County Clerk, \$107,691.26; Sheriff, \$138,865.76; Clerk of District Court, \$24,420.41; Shooting Sports, \$20,167.46; Planning & Development, \$107,869.63; Public Works, \$786.51; Circuit Court, \$53,179.00; DUI Court, \$260.00; Drug Court, \$1,215.00. [24 - 219](#)

**Attachments:** [March Fees 2024](#)

This agenda item was approved.

18. Consideration of the following part-time salaries in the amount of \$54,113.92 for April 2024: Planning, \$4,686.07; Shooting Sports, \$6,406.39; Buildings/Maintenance, \$18,593.12; Sheriff Operations, \$6,107.79; Detention, \$14,819.00; District Court, \$1,187.55; Drug/DUI Courts, \$2,314.00. [24 - 221](#)

**Attachments:** [April Part-time Salaries 2024](#)

This agenda item was approved.

## Warrants

19. Consideration of warrants in the amount of \$4,888,538.17 for April 2024. [24 - 238](#)

**Attachments:** [April Warrants 2024](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Thompson, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

**Resolutions**

- 20.** Consideration of a resolution dividing Laramie County into six (6) election districts as required by WS 22-7-101. [\*\*24 - 239\*\*](#)

**Attachments:** [Resolution Dividing Laramie County into Six Election Districts](#)

A motion was made by Vice Chairman Malm, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

- 21.** Consideration of a resolution to approve the consolidation of the Sept 2024 meetings of the Board of County Commissioners. [\*\*24 - 201\*\*](#)

**Attachments:** [Resolution Consolidating Sept 2024 Commission Meetings](#)

A motion was made by Commissioner Holmes, seconded by Vice Chairman Malm, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

- 22.** Consideration of a resolution rescinding Stage 2 fire restrictions for Laramie County, WY. [\*\*24 - 230\*\*](#)

**Attachments:** [Resolution, Rescinding Stage 2 Fire Restrictions](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

## Grants

23. Consideration of an agreement between Laramie County, WY, and OMNI Institute in an amount not to exceed \$150,000 to provide evaluation services for the Laramie County Law Enforcement Assisted Diversion Program to run through May 31, 2026. [24 - 203](#)

**Attachments:** [Agreement, OMNI Institute](#)

A motion was made by Commissioner Thompson, seconded by Vice Chairman Malm, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

## Contract/Agreement/Leases

24. Consideration of a memorandum of understanding and a business associate agreement between Laramie County, WY, and Cheyenne-Laramie County Health Dept to set forth the terms and conditions to provide access to Maternal Child Health and Plans of Safe Care education to pregnant inmates at the Detention Center and Juvenile Services Center. [24 - 220](#)

**Attachments:** [MOU and Agreement, Cheyenne-Laramie County Health Dept](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

## License/Permits

Items #25 through #28 were consolidated into one public hearing, a motion and vote for #25 and a combined motion and vote for #26, #27 and #28.

25. Request for reconsideration of denial regarding a seasonal fireworks permit submitted by Breanna Elliott, dba Jurassic Fireworks, located at 201 I-25 Service Rd Bldg A. (Item denied from April 16, 2024, meeting) [24 - 209](#)

**Attachments:** [Permit, Jurassic Fireworks, 201 I-25 Service Rd Bldg A Exhibits, Jurassic Fireworks, 201 I-25 Service Rd Bldg A](#)

Mark Voss, County Attorney, said these agenda items are reconsiderations of the denial at the last meeting. He noted there is no procedure for reconsideration. Voss

said the standards are the same as for consideration of the initial applications.

Bruce Asay, attorney for the applicant, said he is here to support the request to reconsider the earlier denial. Asay said he reviewed the video of the last meeting and had concerns about the comments made. He acknowledged there have been problems in the past, and he stated attempts were made to address them. He said he spoke with Terry Bison Ranch, Pro City, Black Cats (aka Wyoming Fireworks Warehouse), Power Sports and Wholesale, and each person with whom he spoke did not cite any issues with his clients' business.

Asay stated his client has requested the opportunity to address problems that have occurred. He referred to a letter from the county to the applicant a year ago, to which Dion Custis, attorney for the applicant, had provided a response. Asay said nothing has been mentioned to the applicant since June 2023.

Asay stated their position is the applicant went through the process, satisfying requirements including site plan reviews, onsite inspections, and payment of more than \$11,000 in fees. He said his client signed the application affirming they will abide by county regulations, and no adverse comments about the applications were raised. He concluded they are entitled to receive the permits.

Commissioner Thompson spoke about an issue in 2019. He said Amy Lenhardt, Terry Grazing Association, had an agreement with the Elliotts to have a tractor-trailer on their property. Lenhardt reported to the county sheriff's office her concerns about a person on top of the trailer with a bullhorn and flag and had expressed fears that someone might get hurt because of the buffalo in the pasture. Thompson said Lenhardt's attorney had a discussion about the safety concerns with Elliott and Custis, during which, they agreed the individual should get down from the trailer. Thompson said based on text messages, Elliott and Custis later decided they had a right to be on the trailer.

Asay noted the complaint was in 2019, applications were approved in subsequent years, and there has yet to be a single citation within the last year. Thompson asked if Asay had spoken with Phantom Fireworks. Asay said he had not. Thompson said his comments at the previous meeting were about the applicant's established pattern of behavior. Thompson read a complaint from Phantom Fireworks from a couple of years ago, which included the applicants' business driving up and down the road, obstructing traffic, using a bullhorn, and fear for the safety of Phantom's employees and customers. The complaint cited employees' concerns that they felt unsafe walking to their vehicles. Asay noted that concern was raised years ago. He said the applicant did not go into the streets and the sheriff's office addressed the bullhorn issue, clearly stating the applicant had not violated the law. Asay said his clients' aggressive marketing is effective and brings revenue to the county.

Brianna Elliott, applicant, requested her applications be approved. She spoke about the positive impact the businesses have had in Laramie County, contributing significantly to the county's tax base, including substantial sales tax revenue and attracting customers to the area. She pointed to application fees she has paid and a nonrefundable commitment to purchase fireworks. Elliott noted when a letter of concern came from the county, those concerns were addressed. She said a citation had not been issued within the last year and there were no further letters from the county. Elliott said her business competes for customers and needs to bring attention to their site. She said she acts by the law, and if there are concerns, bring them to her attention and allow her to address them. Elliott said only Artillery World uses the speaker, and it is used appropriately. She said she believes other events, such as concerts at Terry Bison and the Daddy of 'em All, impact noise more. She stated she looks forward to open communications, transparency, and collaboration with Laramie County officials. Elliott said the sheriff's office has repeatedly informed them they are working within the confines of the law.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Petra Goldberg, representative of Phantom Fireworks, spoke about what she described as constant bombardment from the applicant, their activity in the easement, use of a bullhorn, complaints from her customers, removal of people from her showroom who were disrupting customers, damage to her fireworks and removal of her price tags, and employees and their parents feeling it is unsafe to work in the environment. She requested the board not reconsider giving permits to the applicant.

Matt Butler, Fire Warden, spoke about complaints that have come to his attention, but which are not directly from the source. He said the major concerns and complaints were use of the bullhorn, people in the middle of the street and on top of trailers. He said he looks at these issues from the safety point of view and if they distract drivers.

Custis believes there needs to be more communication about what is or is not allowed. He said he has addressed complaints brought to his attention. He noted some of the complaints presented by Goldberg have yet to be addressed to him. He said he believes Phantom has made false allegations of assault. Custis said there have not been any hearings or validation of these allegations and complaints. On the subject of the bullhorn, he said his client was told one thing by the sheriff's office and another by the board. Custis reiterated if complaints are sent to him, he will address them with his client for compliance under the law. He requested the board reconsider their denial of the permits.

Thompson spoke about a letter from the County Attorney dated June 15, 2023, referencing complaints the county had received. Thompson said communication has not just been with the sheriff's office, but also with the county attorney's office. He asked why Custis would take what the sheriff's office says over what county commissioners say. Thompson questioned if Custis had shared their concerns about

his behavior and the citation of state statute. Custis repeated he would have addressed what is or is not acceptable with his client.

Commissioner Malm spoke about emails commissioners received on April 16 and 17, 2024. Malm asked if Custis would deem those emails as threats. Custis said he did not feel the emails were threats and spoke about his client's feelings of being discriminated against and believes the board assumed the validity of complaints without an opportunity for response. Custis noted he feels the emails were sent in frustration, and the only recourse is a legal remedy. Malm said he perceived the emails as a threat to his colleagues. Malm noted he voted for some of the applications and intended to put some conditions in place at the previous meeting, but in light of the emails, he will vote no. Malm spoke about Custis' client, Frank Elliott, and the applicant, Brianna Elliott, pointing out this is the first time the board has heard from Brianna. He said communication is usually from her father, Frank, who is not actually a party to the application. Custis said his client was advised to have communications go to the county through the attorney.

Commissioner Holmes described an incident last year when he felt intimidated being recorded by a representative of Custis' client on a public right-of-way after Holmes had observed activity in the area. Custis said his client feels he is under investigation and needs to record interactions with competitors and some board members.

Aaron Veldheer, sheriff's chief deputy of operations, noted the office received several calls about bullhorns, signs, and a fire truck driving up and down the road with lights and sirens activated. He said he could not go into great detail about the emails because of an active investigation.

Hearing no further PUBLIC COMMENT, Chairman Lovett closed the hearing.

Voss presented documents as exhibits to support the items mentioned today.

A motion was made by Vice Chairman Malm, seconded by Commissioner Thompson, to reconsider the application.

Thompson discussed a letter from Custis, in which Custis discussed constitutional problems with reliance on third-party complaints that have not been proven or their ability to respond.

Thompson explained the board is not a court and said he does not feel the legislature intended for the board to be comprised of attorneys. He feels the board is a representative of the community, and its members were elected to make decisions. Thompson said he needs to take all the information about decisions and what has been witnessed firsthand. He pointed to complaints that businesses are being threatened and harmed, and took into consideration all the information, including the fact that the county attorney had sent multiple letters about issues. Thompson recalled

a time he witnessed a person in the right-of-way with a bullhorn trying to flag him down. He talked about the danger of having an old fire truck running up and down the road and a person on top of a trailer. Thompson said there was a threat from the sheriff's office to trespass if the person did not get off the trailer. He said the issue is not obnoxious marketing; it is health and safety. Thompson stated it is the board's job to make sure our citizens can drive down the road and not be harassed by somebody in the right-of-way and to run a business without employees being scared for their safety. Thompson added that even with all the letters sent to the applicant, the only recourse is for the board to deny the permit.

Holmes said the board is charged with the health, welfare, and safety of the community. He stated what he observed on two different occasions was not good for the community.

Malm spoke about trying to put some restrictions on the permit at the last meeting to see if they could be good operators. He said there could be a disagreement about the tone of the emails, but in his opinion, they were threatening. He said until Frank Elliott is not a party to this transaction or license and there are assurances he will not participate in the business, Malm cannot vote for the permit. Malm addressed Elliott's claim of discrimination, noting there is not a single Wyoming-based operator, and the issue is not a Colorado vs Wyoming thing.

Commissioner Heath said if she had a young teenager learning to work, the last thing she would want them to learn is unethical business practices. Health and safety are concerns. She spoke about treating your neighbor and fellow businessmen right. Heath said if the board hears a complaint, it is general practice to investigate the complaint, and it is not unusual to go out and observe.

The motion failed by the following vote:

**Nay:** Lovett, Malm, Heath, Holmes, Thompson

- 26.** Request for reconsideration of denial regarding a yearly fireworks permit submitted by Breanna Elliott, dba Artillery World, located at 237 I-25 Service Rd, Bldg A. (Item denied from April 16, 2024, meeting) [24 - 210](#)

**Attachments:** [Permit, Artillery World, 237 I-25 Service Rd Bldg A](#)  
[Exhibits, Artillery World - 237 I-25 Service Rd Bldg A](#)

A motion was made by Commissioner Thompson Vice Chairman Malm, seconded by Vice Chairman Malm, to reconsider items #26, #27, and #28. The motion failed by the following vote:

**Nay:** Lovett, Malm, Heath, Holmes, Thompson

- 27.** Request for reconsideration of denial regarding a seasonal fireworks permit submitted by Breanna Elliott, dba Artillery World, located at [24 - 211](#)

237 I-25 Service Rd, Bldg B. (Item denied from April 16, 2024, meeting)

**Attachments:**     [Permit, Artillery World, 237 I-25 Service Rd Bldg B](#)  
[Exhibits, Artillery World, 237 I-25 Service Rd Bldg B](#)

A motion was made by Commissioner Thompson Vice Chairman Malm, seconded by Vice Chairman Malm, to reconsider items #26, #27, and #28. The motion failed by the following vote:

**Nay:** Lovett, Malm, Heath, Holmes, Thompson

- 28.** Request for reconsideration of denial regarding a seasonal fireworks permit submitted by Breanna Elliott, dba Artillery World, located at 237 I-25 Service Rd, Bldg C. (Item denied from April 16, 2024, meeting) **24 - 212**

**Attachments:**     [Permit, Artillery World, 237 I-25 Service Rd Bldg C](#)  
[Exhibits, Artillery World, 237 I-25 Service Rd Bldg C](#)

A motion was made by Commissioner Thompson Vice Chairman Malm, seconded by Vice Chairman Malm, to reconsider items #26, #27, and #28. The motion failed by the following vote:

**Nay:** Lovett, Malm, Heath, Holmes, Thompson

- 29.** PUBLIC HEARING regarding a yearly fireworks permit submitted by Richard Krehbiel, dba Wholesale Fireworks, located at 3229 W College Dr. **24 - 231**

**Attachments:**     [Permit, Wholesale Fireworks, 3229 W College Dr](#)

Matt Butler, Fire Warden, said the inspections were completed. Dale Davis, County Clerk Chief Deputy, said the applications were in order. Commissioner Thompson questioned Butler about whether he had received any complaints about the facility. Butler said he was unaware of any complaints.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Chairman Lovett closed the hearing.

A motion was made by Vice Chairman Malm, seconded by Commissioner Holmes, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

Items #30 through #32 were consolidated into one public hearing, motion and vote.

Matt Butler, Fire Warden, said the inspections were completed. Dale Davis, County Clerk Chief Deputy, said the applications were in order. Commissioner Thompson questioned Butler about whether he had received any complaints about the facility. Butler said he was unaware of any complaints.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Chairman Lovett closed the hearing.

- 30.** PUBLIC HEARING regarding a yearly fireworks permit submitted by Michael Johnson, dba Pyro City, located at 245 I-25 Service Rd. [24 - 233](#)

**Attachments:** [Permit, Pyro City, 245 I-25 Service Rd](#)

A motion was made by Commissioner Thompson, seconded by Vice Chairman Malm, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

- 31.** PUBLIC HEARING regarding a seasonal fireworks permit submitted by Michael Johnson, dba Pyro City, located at 3115 W College Dr. [24 - 234](#)

**Attachments:** [Permit, Pyro City, 3115 W College Dr](#)

A motion was made by Commissioner Thompson, seconded by Vice Chairman Malm, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

- 32.** PUBLIC HEARING regarding a seasonal fireworks permit submitted by Michael Johnson, dba Fireworks Outlet, located at 251 I-25 Service Rd. [24 - 235](#)

**Attachments:** [Permit, Fireworks Outlet, 251 I-25 Service Rd](#)

A motion was made by Commissioner Thompson, seconded by Vice Chairman Malm, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

- 33.** PUBLIC HEARING regarding a seasonal fireworks permit submitted by Shawna Williams-McDonald, dba Wyoming Fireworks Warehouse, located at 12616 I-80 Service Rd. [24 - 232](#)

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**Attachments:** [Permit, Wyoming Fireworks Warehouse, 12616 I-80 Service Rd](#)

Matt Butler, Fire Warden, said the inspections were completed. Dale Davis, County Clerk Chief Deputy, said the applications were in order. Commissioner Thompson questioned Butler about whether he had received any complaints about the facility. Butler said he was unaware of any complaints.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Chairman Lovett closed the hearing.

A motion was made by Commissioner Holmes, seconded by Commissioner Thompson, that this agenda item be approved. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

**Bids/Purchases**

34. Consideration of the recommendation for Laramie County's auditing services for FY24.

[24 - 202](#)

**Attachments:** [Proposal, CliftonLarsonAllen, LLP](#)

Stanley Walker, County Clerk's Finance Director, explained that it is the county's practice to issue an RFP every five years for audit services. Walker said the county received two bids, Haynie & Company and CliftonLarsonAllen, LLP. Walker noted upon review of the bids that both companies are capable of performing the county's audit. He said CliftonLarsonAllen's cost was lower. Walker said the audit committee recommends that CliftonLarsonAllen perform the audit services for the next five years.

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, approve the recommendation. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

**Land Use:Variances/Board App./Plats**

Commissioner Malm announced he had a conflict of interest with agenda item #35.

35. PUBLIC HEARING regarding a subdivision permit and plat for Pita Ranch, 2nd Filing, located in a portion of the N1/2 SE1/4 of Sect 34, T14N, R63W, and a portion of Tract 1, Pita Ranch, Laramie County, WY.

[24 - 222](#)

**Attachments:** [Pita Ranch, 2nd Filing, Subdivision Permit and Plat](#)

Cate Cundall, Planning, said Steil Surveying Services, LLC, on behalf of G & G Enterprises, submitted a subdivision permit and plat application for a property on the west side of County Rd 146 and south of Iron Horse Rd. She said the application was

submitted to subdivide the 40.63 combined acreage into seven residential tracts averaging 5.25 to eight acres each.

Cundall said based on evidence provided, staff recommends approval with the adoption of findings of fact a and b with two conditions: 1) A non-adverse DEQ Chapter 23 recommendation is received prior to plat recordation and 2) A road and easement naming application needs to be approved prior to plat recordation.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Chairman Lovett closed the hearing.

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, to approve the subdivision permit and plat for Pita Ranch, 2nd Filing and adopt the findings of facts a and b of the staff report with two conditions. The motion carried by the following vote:

**Aye:** Lovett, Heath, Holmes, Thompson

**Recused:** Malm

- 36.** PUBLIC HEARING regarding a board approval and site plan for the Leachman Feedyard and Sale Facility located in a portion of Sects 3, 4, 5, 6, 7, 9, 10, T18N, R61W and a portion of Sects 1, 2, 3, 10, 11, 12, T18N, R62W of the 6th PM, Laramie County, WY.

**24 - 223**

**Attachments:** [Leachman Feedyard and Sale Facility Board Approval and Site Plan](#)  
[Leachman Feedyard and Sale Facility PowerPoint](#)

Cate Cundall, Planning, said Settje Agri-Services & Engineering, Inc, on behalf of Leland Leachman, submitted applications for board approval and a site plan for the Leachman Feedyard and Sale Facility. She said the property lies approximately half mile southeast of Hwy 85 and Rd 152. Cundall said the applications were submitted to expand and operate a livestock feeding operation adjacent to their current facility at 5380 Rd 238. She said both applications were combined into one staff report for ease of presentation and discussion, with separate motions required for the two actions.

Leland Leachman and Travis Caspersen, applicant and agent, presented a PowerPoint presentation of the operation. They said the purpose is to centralize operations and provide a better regulatory environment in Wyoming.

Commissioner Thompson questioned Leachman and Caspersen about the process for the odor footprint tool. Caspersen said he liked it and felt it was fair and not overly burdensome, but it took a little time to figure it out because his company was the first to use the tool since its adoption in 2020.

Cundall said based on evidence provided, staff recommends approval of the

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application and site plan with the adoption of findings of fact a, b, c and d with two conditions: 1) All recommendations of the agency reviews, including public improvements deemed necessary, are addressed prior to the issuance of a certificate of review and 2) Reviews by the Dept of Environmental Quality and the State Engineers office are completed prior to issuance of a certificate of review.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Chairman Lovett closed the hearing.

A motion was made by Vice Chairman Malm, seconded by Commissioner Holmes, to grant board approval for a concentrated feeding operation located in a portion of Sects 3, 4, 5, 6, 7, 9, 10, T18N, R61W, and a portion of Sects 1, 2, 3, 10, 11, 12, T18N, R62W, of the 6th PM, Laramie County, WY, with two conditions and adopt the findings of fact a of the staff report. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

A motion was made by Vice Chairman Malm, seconded by Commissioner Holmes, to approve the Leachman Feedyard and Sale Facility site plan located in a portion of Sects 3, 4, 5, 6, 7, 9, 10, T18N, R61W, and a portion of Sects 1, 2, 3, 10, 11, 12, T18N, R62W of the 6th PM, Laramie County, WY, with two conditions, and adopt the findings of fact b, c and d. The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

- 37.** PUBLIC HEARING regarding a zone change from A2 - Agricultural to MU - Mixed Use for Tract 5, Mesa Tracts, Laramie County, WY.

[24 - 225](#)

**Attachments:** [Green, Zone Change](#)

Bryce Hamilton, Planning, said Inberg-Miller Engineers, on behalf of Trystin and Mike Green, submitted a zone change application for property in the Mesa Tracts Subdivision at 8619 US Hwy 30, near the intersection with Dell Range Blvd. He said the application asks to rezone the property from A2 - Agricultural to MU - Mixed Use, allowing commercial trailer sales to take place at the property while still being used as a residence. Hamilton said a site plan will be processed administratively by the Planning Dept following approval of the zone change.

Hamilton said based on evidence provided, staff recommends approval with the adoption of findings of fact a and b.

Chairman Lovett opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Chairman Lovett closed the hearing.

A motion was made by Vice Chairman Malm, seconded by Commissioner Thompson, to approve a zone change from A2 to MU for Tract 5, Mesa Tracts, Laramie County, WY and adopt the findings of fact a and b The motion carried by the following vote:

**Aye:** Lovett, Malm, Heath, Holmes, Thompson

**The meeting adjourned at 5:21 pm.**

#### **CERTIFICATION**

I, Debra K. Lee, Clerk of Laramie County, do hereby certify the above to be a true and correct copy of the Minutes of the Proceedings for Tuesday, May 7, 2024.

Approved by : Debra K. Lee, County Clerk

Reviewed by : Gunnar Malm, Acting Chairman,  
Board of County Commissioners

#### **Reasonable Accommodations**

This information is available in alternate forms. If reasonable accommodations are required, contact Laramie County Human Resources at (307) 633-4355 or [humanresources@laramiecountywy.gov](mailto:humanresources@laramiecountywy.gov) at least two business days prior to the meeting. Per WS §18-3-516(f), access to county information can be obtained at [laramiecountywy.gov](http://laramiecountywy.gov).